

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MARCH 18, 2026
8:30 a.m.

7. RAEANNE ISABELL WILSON V. PAUL EDWARD LYNFOOT

22FL1155

This matter is before the court on the Request for Order (RFO) filed by the Petitioner on January 23, 2026, to modify custody and visitation. The filing of the RFO prompted the court to refer the parties to a CCRC session set for February 06, 2026. (El Dorado Super. Ct., Local Ct. R. 8.10.01.)

To date, there is no proof of service of the RFO in the court's file and no responsive declaration filed by the Respondent. However, the court is in receipt of a CCRC report dated February 10, 2026, which indicates that both parties appeared for the CCRC session as scheduled. The court finds that any defect in service of the RFO has been waived by the Respondent as a result of his appearance and participation at the CCRC session.

A copy of the CCRC report was mailed to both parties on February 10, 2026, according to the Clerk's Certificate of Mailing filed that same day. The court finds that the Agreements of the parties and the Recommendations of the CCRC counsellor set forth in the CCRC report are in the parties' children's best interests and therefore adopts them as the orders of the court.

TENTATIVE RULING #7: THE COURT FINDS THAT THE AGREEMENTS OF THE PARTIES AND THE RECOMMENDATIONS OF THE CCRC COUNSELLOR SET FORTH IN THE CCRC REPORT DATED FEBRUARY 10, 2026, ARE IN THE PARTIES' CHILDREN'S BEST INTERESTS AND THEREFORE ADOPTS THEM AS THE ORDERS OF THE COURT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
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MARCH 18, 2026
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8. TONI MORLEY V. VICTOR GUTIERREZ

25FL1225

This matter is before the court on the Request for Order (RFO) filed by the Respondent on February 03, 2026, to modify Child and Spousal Support retroactive to the date of filing (February 05, 2026) after the court partially granted the Petitioner's RFO (filed December 18, 2025) on January 28, 2026.

As outlined in the Findings and Order After Hearing (FOAH) filed January 30, 2026, the court ordered Respondent to pay Child Support to the Petitioner in the amount of \$1,064.00 and Spousal Support to the Petitioner in the amount of \$242.00 beginning January 01, 2026, and the first of each month thereafter until further order of the court. The court also ordered the Respondent to pay the Petitioner \$446.88 Child Support and \$101.64 Spousal Support for the month of December 2025 (42 percent of the monthly support amounts).

Proof of service filed February 27, 2026, shows that Respondent's instant RFO, as well as Respondent's Income & Expense Declaration (I&E), also filed February 05, 2026, were served upon the Petitioner via mail on February 06, 2026.

On March 03, 2026, the Petitioner filed a Responsive Declaration, a copy of which was served upon the Respondent that same day, according to the proof of service, also filed March 03, 2026.

On March 10, 2026, the Department of Child Support Services (DCSS) filed its Responsive Declaration to the instant RFO, a copy of which was served upon both parties via mail on March 12, 2026, according to the proof of service filed March 13, 2026.

In support of the RFO, Respondent claims that: (1) he actually earns approximately \$4,641.083 [sic] per month;³ (2) he also has monthly health insurance costs of \$685.42; and (3) the parties actually share 50/50 custody of their son, AG (age 9).⁴

Petitioner's Responsive Declaration opposes the instant RFO claiming there has been no change in circumstances since the court's order dated January 28, 2026, that would warrant modification of child or spousal support.

³ The FOAH was based on a finding that the Respondent earned a monthly average of \$6,000.00. This evidence was presented in the Petitioner's I&E submitted concurrently with her RFO on December 18, 2025. As noted in the court's tentative ruling issued January 27, 2026, the court did not consider Respondent's I&E, filed January 26, 2026, because it was not timely served upon the Petitioner (proof of service shows that Respondent's I&E was personally served upon Petitioner on January 23, 2026, five days before the hearing; the deadline for service of Respondent's I&E was January 14, 2026 – nine court days before the hearing (Code Civ. Proc., § 1005, subd. (b)).)

⁴ The FOAH was based on a finding that Respondent's custody share of AG is 14 percent; and Petitioner's custody share of AG is 86 percent. Evidence of the parties' custody share was presented in Petitioner's RFO papers filed December 18, 2025.